ATTORNEY OR PARTY WITHOUT ATTORNEY
STATE BAR NUMBER:
NAME: Brendan Ngwa Nforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton
STATE: CA
ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442
FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff, In Propria Persona

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Joaquin
STREET ADDRESS: 180 E Weber Avenue
MAILING ADDRESS: 180 E Weber Avenue
CITY AND ZIP CODE: Stockton, CA 95202
BRANCH NAME: Stockton Courthouse

CASE NAME: Brendan Ngwa Nforbi v. Home Depot U.S.A., Inc.

CIVIL CASE COVER SHEET

☐ **Unlimited** (Amount demanded exceeds $35,000)
☐ **Limited** (Amount demanded is $35,000 or less)

Complex Case Designation

☐ Counter ☐ Joinder

Filed with first appearance by defendant (Cal. Rules of Court, rule 3.402)

CASE NUMBER:

JUDGE:
DEPT.:

Items 1–6 below must be completed (see instructions on page 2 and examples on page 3).

1. Check **one** box below for the case type that best describes this case:

Auto Tort
- ☐ Auto (22)
- ☐ Uninsured motorist (46)

Asbestos
- ☐ Asbestos (04)

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- ☐ Product liability (24)
- ☐ Medical malpractice (45)
- ☐ Other PI/PD/WD (23)

Non-PI/PD/WD (Other) Tort
- ☐ Business tort/Unfair business practice (07)
- ☐ Civil rights (08)
- ☐ Defamation (13)
- ☐ Fraud (16)
- ☐ Intellectual property (19)
- ☐ Professional negligence (25)
- ☐ Other non-PI/PD/WD tort (35)

Employment
- ☐ Wrongful termination (36)
- ☐ Other employment (15)

Contract
- ☐ Breach of contract/warranty (06)
- ☐ Song-Beverly Act: Motor Vehicle Lemon Law (49)
- ☐ Rule 3.740 collections (09)
- ☐ Other collections (09)
- ☐ Insurance coverage (18)
- ☐ Other contract (37)

Real Property
- ☐ Eminent domain/Inverse condemnation (14)
- ☐ Wrongful eviction (33)
- ☐ Other real property (26)

Unlawful Detainer
- ☐ Commercial (31)
- ☐ Residential (32)
- ☐ Drugs (38)

Judicial Review
- ☐ Asset forfeiture (05)
- ☐ Petition re arbitration award (11)
- ☐ Writ of mandate (02)
- ☐ Other judicial review (39)

Employment Development Department (EDD)
- ☐ EDD decision review (48)

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)
- ☐ Antitrust/Trade regulation (03)
- ☐ Construction defect (10)
- ☐ Mass tort (40)
- ☐ Securities litigation (28)
- ☐ Environmental/Toxic tort (30)
- ☐ Comprehensive groundwater adjudication (47)
- ☐ Insurance coverage claims arising from the above listed provisionally complex case types (41)

Enforcement of Judgment
- ☐ Enforcement of judgment (20)

Miscellaneous Civil Complaint
- ☐ RICO (27)
- ☐ Other complaint *(not specified above)* (42)

Miscellaneous Civil Petition
- ☐ Partnership and corporate governance (21)
- ☐ Other petition *(not specified above)* (43)

2. Is this case complex under rule 3.400 of the California Rules of Court? ☐ Yes ☐ No

   If the case is complex, mark the factors requiring exceptional judicial management:

   a. ☐ Large number of separately represented parties
   b. ☐ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve
   c. ☐ Substantial amount of documentary evidence
   d. ☐ Large number of witnesses
   e. ☐ Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court
   f. ☐ Substantial postjudgment judicial supervision

3. Remedies sought *(check all that apply):*

   a. ☐ monetary
   b. ☐ nonmonetary; declaratory or injunctive relief
   c. ☐ punitive

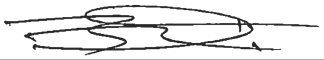
4. Number of causes of action *(specify):* 4

5. Is this case a class action suit? ☐ Yes ☐ No

6. If there are any known related cases, file and serve a notice of related case. *(You may use form CM-015.)*

Date: September 8, 2026

Brendan Ngwa Nforbi
Type or print name


Signature of party or attorney for party

NOTICE

- Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except small claims cases or cases filed under the Probate Code, Family Code, or Welfare and Institutions Code). (Cal. Rules of Court, rule 3.220.) Failure to file may result in sanctions.
- File this cover sheet in addition to any cover sheet required by local court rule.
- If this case is complex under rule 3.400 et seq. of the California Rules of Court, or a collections case under rule 3.740, you must serve a copy of this cover sheet on all other parties to the action or proceeding. (Cal. Rules of Court, rule 3.220.)
- Unless this is a collections case under rule 3.740 or a complex case, this cover sheet will be used for statistical purposes only.

INSTRUCTIONS ON HOW TO COMPLETE THE COVER SHEET

To Plaintiffs and Others Filing First Papers. If you are filing a first paper (for example, a complaint) in a civil case, you **must** complete and file, along with your first paper, the Civil Case Cover Sheet contained on pages 1 and 2. This information will be used to compile statistics about the types and numbers of cases filed. You must complete items 1 through 6 on the sheet. In item 1, you must check **one** box for the case type that best describes the case. If the case fits both a general and a more specific type of case listed in item 1, check the more specific one. If the case has multiple causes of action, check the box that best indicates the **primary** cause of action. To assist you in completing the sheet, examples of the cases that belong under each case type in item 1 are provided on page 3 of this form. A cover sheet must be filed only with your initial paper. Failure to file a cover sheet with the first paper filed in a civil case may subject a party, its counsel, or both to sanctions under rules 2.30 and 3.220 of the California Rules of Court.

To Parties in Rule 3.740 Collections Cases. A "collections case" under rule 3.740 of the California Rules of Court is defined as an action for recovery of money owed in a sum stated to be certain that is not more than $35,000, exclusive of interest and attorney's fees, arising from a transaction in which property, services, or money was acquired on credit. A collections case does not include an action seeking the following: (1) tort damages, (2) punitive damages, (3) recovery of real property, (4) recovery of personal property, or (5) a prejudgment writ of attachment. The identification of a case as a rule 3.740 collections case on this form means that it will be exempt from the general time-for-service requirements and case management rules, unless a defendant files a responsive pleading. A rule 3.740 collections case will be subject to the requirements for service and obtaining a judgment in rule 3.740.

To Parties in Complex Cases. In complex cases only, parties must also use the Civil Case Cover Sheet to designate whether the case is complex. If a plaintiff believes the case is complex under rule 3.400 of the California Rules of Court, this must be indicated by completing the appropriate boxes in items 1 and 2. If a plaintiff designates a case as complex, the cover sheet must be served with the complaint on all parties to the action. A defendant may file and serve no later than the time of its first appearance a joinder in the plaintiff's designation, a counter-designation that the case is not complex, or, if the plaintiff has made no designation, a designation that the case is complex.

SEE PAGE 3 FOR INFORMATION PURPOSES ONLY.

CASE TYPES AND EXAMPLES

The list below provides explanations and examples for the case type checkboxes listed in item 1 on this form. The lists of examples below are not meant to be exhaustive, and some case types may have causes of action not listed here.

Auto Tort
- Auto (22)–Personal Injury/Property Damage/Wrongful Death
- Uninsured Motorist *(if the case involves an uninsured motorist claim subject to arbitration, check this item instead of Auto)* (46)

Asbestos
- Asbestos (04)
  - Asbestos Property Damage
  - Asbestos Personal Injury/Wrongful Death

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- Product Liability *(not asbestos or environmental/toxic tort)* (24)
- Medical Malpractice (45)
  - Medical Malpractice–Physicians & Surgeons
  - Other Professional Health Care Malpractice
- Other PI/PD/WD (23)
  - Premises Liability (e.g., slip and fall)
  - Intentional Bodily Injury/PD/WD (e.g., assault, vandalism)
  - Intentional Infliction of Emotional Distress
  - Negligent Infliction of Emotional Distress
  - Other PI/PD/WD

Non-PI/PD/WD (Other) Tort
- Business Tort/Unfair Business Practice (07)
- Civil Rights (e.g., discrimination, false arrest) *(not civil harassment)* (08)
- Defamation (e.g., slander, libel) (13)
- Fraud *(other than contract)* (16)
- Intellectual Property (19)
- Professional Negligence (25)
  - Legal Malpractice
  - Other Professional Malpractice *(not medical)*
- Other Non-PI/PD/WD Tort (35)

Employment
- Wrongful Termination (36)
- Other Employment (15)

Contract
- Breach of Contract/Warranty (06)
  - Breach of Rental/Lease Contract *(not unlawful detainer or wrongful eviction)*
  - Contract/Warranty Breach–Seller Plaintiff *(not fraud)*
  - Negligent Breach of Contract/Warranty
  - Other Breach of Contract/Warranty
- Song-Beverly Act: Motor Vehicle Lemon Law *(check this item if the case involves a Song-Beverly Act claim regarding a motor vehicle)* (49)
- Rule 3.740 Collections *(as defined in Cal. Rules of Court, rule 3.740(a))* (09)
- Other Collections (e.g., money owed, open book accounts, promissory note) (09)
- Insurance Coverage *(not provisionally complex)* (18)
  - Auto Subrogation
  - Other Coverage
- Other Contract (37)
  - Contractual Fraud
  - Other Contract Dispute

Real Property
- Eminent Domain/Inverse Condemnation (14)
- Wrongful Eviction (33)
- Other Real Property (e.g., quiet title) (26)
  - Writ of Possession of Real Property
  - Mortgage Foreclosure
  - Quiet Title
  - Other Real Property *(not unlawful detainer)*

Unlawful Detainer
- Commercial (31)
- Residential (32)
- Drugs *(if the case involves illegal drugs, check this item; otherwise, choose Commercial or Residential)* (38)

Judicial Review
- Asset Forfeiture (05)
- Petition re Arbitration Award (11)
- Writ of Mandate (02)
  - Writ–Administrative Mandamus
  - Writ–Mandamus on Limited Court Case Matter
  - Writ–Other Limited Court Case Review
- Other Judicial Review (39)
  - Review of Health Officer Order
  - Notice of Appeal–Labor Commissioner Appeals

Employment Development Department (EDD)
- EDD Decision Review *(if the case involves an Employment Development Department decision, check this item instead of wrongful termination or other employment)* (48)

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)
- Antitrust/Trade Regulation (03)
- Construction Defect (10)
- Mass Tort (40)
- Securities Litigation (28)
- Environmental/Toxic Tort (30)
- Comprehensive Groundwater Adjudication (47)
- Insurance Coverage Claims *(arising from provisionally complex case type listed above)* (41)

Enforcement of Judgment
- Enforcement of Judgment (20)
  - Abstract of Judgment (Out of County)
  - Confession of Judgment *(non-domestic relations)*
  - Sister-State Judgment
  - Administrative Agency Award
  - Petition/Certification of Entry of Judgment on Unpaid Taxes
  - Other Enforcement of Judgment Case

Miscellaneous Civil Complaint
- RICO (27)
- Other Complaint *(not specified above)* (42)
  - Declaratory Relief Only
  - Injunctive Relief Only *(non-harassment)*
  - Mechanic's Lien
  - Other Commercial Complaint Case *(non-tort/non-complex)*
  - Other Civil Complaint *(non-tort/non-complex)*

Miscellaneous Civil Petition
- Partnership and Corporate Governance (21)
- Other Petition *(not specified above)* (43)
  - Civil Harassment
  - Workplace Violence
  - Elder/Dependent Adult Abuse
  - Election Contest
  - Petition for Name Change
  - Petition for Relief From Government Claim Requirement
  - Other Civil Petition

FW-001 Request to Waive Court Fees

CONFIDENTIAL

Clerk stamps date here when form is filed.

If you are getting public benefits, are a low-income person, or do not have enough income to pay for your household's basic needs and your court fees, you may use this form to ask the court to waive your court fees. The court may order you to answer questions about your finances. If the court waives the fees, you may still have to pay later if:

- You cannot give the court proof of your eligibility,
- Your financial situation improves during this case, or
- You settle your civil case for **$10,000** or more. The trial court that waives your fees will have a lien on any such settlement in the amount of the waived fees and costs. The court may also charge you any collection costs.

Fill in court name and street address:

Superior Court of California, County of

San Joaquin
180 E Weber Avenue
Stockton, CA 95202

Fill in case number and name:

Case Number:

Case Name:
Brendan Ngwa Nforbi
v. Home Depot U.S.A., Inc.

1 Your Information *(person asking the court to waive the fees):*

Name: Brendan Ngwa Nforbi
Street or mailing address: 1455 Cat Tail Drive
City: Stockton State: CA Zip: 95204
Phone: (209) 801-4442

2 Your Job, if you have one *(job title):* _____
Name of employer: _____
Employer's address: _____

3 Your Lawyer, if you have one *(name, firm or affiliation, address, phone number, and State Bar number):*

_____

_____

a. The lawyer has agreed to advance all or a portion of your fees or costs *(check one):* Yes ☐ No ☐

b. *(If yes, your lawyer must sign here)* Lawyer's signature: _____
If your lawyer is not providing legal-aid type services based on your low income, you may have to go to a hearing to explain why you are asking the court to waive the fees.

4 What court's fees or costs are you asking to be waived?

☐ Superior Court (See *Information Sheet on Waiver of Superior Court Fees and Costs* (form FW-001-INFO).)
☐ Supreme Court, Court of Appeal, or Appellate Division of Superior Court (See *Information Sheet on Waiver of Appellate Court Fees* (form APP-015/FW-015-INFO).)

5 Why are you asking the court to waive your court fees?

a. ☐ I receive *(check all that apply; see form FW-001-INFO for definitions):*
☐ Food Stamps ☐ Supp. Sec. Inc. ☐ SSP ☐ Medi-Cal ☐ County Relief/Gen. Assist. ☐ IHSS
☐ CalWORKS or Tribal TANF ☐ CAPI ☐ WIC ☐ Unemployment

b. ☐ My gross monthly household income (before deductions for taxes) is less than the amount listed below. *(If you check 5b, you must fill out 7, 8, and 9 on page 2 of this form.)*

Family Size	Family Income	Family Size	Family Income	Family Size	Family Income
1	$2,660.00	3	$4,553.33	5	$6,446.67
2	$3,606.67	4	$5,500.00	6	$7,393.33

If more than 6 people at home, add $946.67 for each extra person.

c. ☐ I do not have enough income to pay for my household's basic needs *and* the court fees. I ask the court to: *(check one and you **must** fill out page 2):*
☐ waive all court fees and costs ☐ waive some of the court fees ☐ let me make payments over time

6 ☐ Check here if you asked the court to waive your court fees for this case in the last six months.
(*If your previous request is reasonably available, please attach it to this form and check here*): ☐

I declare under penalty of perjury under the laws of the State of California that the information I have provided on this form and all attachments is true and correct.

September 8, 2026

Brendan Ngwa Nforbi
Print your name here

Sign here

Your name: Brendan Ngwa Nforbi

Case Number:

*If you checked 5a on page 1, do not fill out below. If you checked 5b, fill out questions 7, 8, and 9 only. If you checked 5c, you **must** fill out this entire page. If you need more space, attach form MC-025 or attach a sheet of paper and write Financial Information and your name and case number at the top.*

7 ☐ Check here if your income changes a lot from month to month. If it does, complete the form based on your average income for the past 12 months.

8 Your Gross Monthly Income

a. List the source and amount of ***any*** income you get each month, including: wages or other income from work before deductions, spousal/child support, retirement, social security, disability, unemployment, military basic allowance for quarters (BAQ), veterans payments, dividends, interest, trust income, annuities, net business or rental income, reimbursement for job-related expenses, gambling or lottery winnings, etc.

(1) N/A $0
(2) N/A $0
(3) N/A $0
(4) N/A $0

b. **Your total monthly income**: $0

9 Household Income

a. List the income of all other persons living in your home who depend in whole or in part on you for support, or on whom you depend in whole or in part for support.

	Name	Age	Relationship	Gross Monthly Income
(1)	N/A	N/A	N/A	$0
(2)				$
(3)				$
(4)				$

b. **Total monthly income of persons above:** $0

Total monthly income *and* household income *(8b plus 9b):* $0

To list any other facts you want the court to know, such as unusual medical expenses, etc., attach form MC-025 or attach a sheet of paper and write Financial Information and your name and case number at the top.

Check here if you attach another page. ☐

***Important!* If your financial situation or ability to pay court fees improves, you must notify the court within five days on form FW-010.**

10 Your Money and Property

a. Cash $

b. All financial accounts *(List bank name and amount):*
(1) $
(2) $
(3) $

c. Cars, boats, and other vehicles

	Make / Year	Fair Market Value	How Much You Still Owe
(1)		$	$
(2)		$	$
(3)		$	$

d. Real estate

	Address	Fair Market Value	How Much You Still Owe
(1)		$	$
(2)		$	$

e. Other personal property (jewelry, furniture, furs, stocks, bonds, etc.):

	Describe	Fair Market Value	How Much You Still Owe
(1)		$	$
(2)		$	$

11 Your Monthly Deductions and Expenses

a. List any payroll deductions and the monthly amount below:
(1) $
(2) $
(3) $
(4) $

b. Rent or house payment & maintenance $
c. Food and household supplies $
d. Utilities and telephone $
e. Clothing $
f. Laundry and cleaning $
g. Medical and dental expenses $
h. Insurance (life, health, accident, etc.) $
i. School, child care $
j. Child, spousal support (another marriage) $
k. Transportation, gas, auto repair and insurance $
l. Installment payments *(list each below)*:
Paid to:
(1) $
(2) $
(3) $
m. Wages/earnings withheld by court order $
n. Any other monthly expenses *(list each below)*.

	Paid to:	How Much?
(1)		$
(2)		$
(3)		$

Total monthly expenses *(add 11a –11n above):* $

For your protection and privacy, please press the Clear button after you have printed the form.

FW-003 Order on Court Fee Waiver (Superior Court)

Clerk stamps date here when form is filed.

1 Person who asked the court to waive court fees:

Name: Brendan Ngwa Nforbi

Street or mailing address: 1455 Cat Tail Drive

City: Stockton State: CA Zip: 95204

2 Lawyer, if person in 1 has one *(name, firm name, address, phone number, e-mail, and State Bar number):*

Fill in court name and street address:

Superior Court of California, County of

San Joaquin
180 E Weber Avenue
Stockton, CA 95202

Fill in case number and name:

Case Number:

Case Name:
Brendan Ngwa Nforbi
v. Home Depot U.S.A., Inc.

3 A request to waive court fees was filed on *(date):*

☐ The court made a previous fee waiver order in this case on *(date):*

Read this form carefully. All checked boxes þ are court orders.

Notice: The court may order you to answer questions about your finances and later order you to pay back the waived fees. If this happens and you do not pay, the court can make you pay the fees and also charge you collection fees. If there is a change in your financial circumstances during this case that increases your ability to pay fees and costs, you must notify the trial court within five days. (Use form FW-010.) If you win your case, the trial court may order the other side to pay the fees. If you settle your civil case for **$10,000** or more, the trial court will have a lien on the settlement in the amount of the waived fees. The trial court may not dismiss the case until the lien is paid.

4 After reviewing your: ☐ *Request to Waive Court Fees* ☐ *Request to Waive Additional Court Fees* **the court makes the following orders:**

a. ☐ The court **grant**s your request, as follows:

(1) ☐ **Fee Waiver.** The court grants your request and waives your court fees and costs listed below. *(Cal. Rules of Court, rules 3.55 and 8.818.)* You do not have to pay the court fees for the following:

- Filing papers in superior court
- Making copies and certifying copies
- Sheriff's fee to give notice
- Court fee for phone hearing
- Giving notice and certificates
- Sending papers to another court department
- Reporter's fee for attendance at hearing or trial, if the court is not electronically recording the proceeding and you request that the court provide an official reporter
- Assessment for court investigations under Probate Code section 1513, 1826, or 1851
- Preparing, certifying, copying, and sending the clerk's transcript on appeal
- Holding in trust the deposit for a reporter's transcript on appeal under rule 8.130 or 8.834
- Making a transcript or copy of an official electronic recording under rule 8.835

(2) ☐ **Additional Fee Waiver.** The court grants your request and waives your additional superior court fees and costs that are checked below. *(Cal. Rules of Court, rule 3.56.)* You do not have to pay for the checked items.

☐ Jury fees and expenses
☐ Fees for court-appointed experts
☐ Other *(specify):*
☐ Fees for a peace officer to testify in court
☐ Court-appointed interpreter fees for a witness

b. ☐ The court **denies** your fee waiver request because:

Warning! If you miss the deadline below, the court cannot process your request for hearing or the court papers you filed with your original request. If the papers were a notice of appeal, the appeal may be dismissed.

(1) Your request is incomplete. You have **10 days** after the clerk gives notice of this Order (see date of service ☐ on next page) to:

- Pay your fees and costs, or
- File a new revised request that includes the incomplete items listed:
  ☐ Below ☐ On Attachment 4b(1)

(2) ☐ The information you provided on the request shows that you are not eligible for the fee waiver you requested for the reasons stated: ☐ Below ☐ On Attachment 4b(2)

The court has enclosed a blank *Request for Hearing About Court Fee Waiver Order (Superior Court)* (form FW-006).You have **10 days** after the clerk gives notice of this order (see date of service below) to:

- Pay your fees and costs in full or the amount listed in c below, or
- Ask for a hearing in order to show the court more information. *(Use form FW-006 to request hearing.)*

c. (1) ☐ The court needs more information to decide whether to grant your request. You must go to court on the date on page 3. The hearing will be about the questions regarding your eligibility that are stated:
☐ Below ☐ On Attachment 4c(1)

(2) ☐ Bring the items of proof to support your request, if reasonably available, that are listed:
☐ Below ☐ On Attachment 4c(2)

This is a Court Order.

Your name: Brendan Ngwa Nforbi

Case Number:

Name and address of court if different from above:

Hearing Date

Date: _____ Time: _____

Dept.: _____ Room: _____

Warning! If item c(1) is checked, and you do not go to court on your hearing date, the judge will deny your request to waive court fees, and you will have 10 days to pay your fees. If you miss that deadline, the court cannot process the court papers you filed with your request. If the papers were a notice of appeal, the appeal may be dismissed.

Date: _____

_____

Signature of (check one): ☐ *Judicial Officer* ☐ *Clerk, Deputy*

Request for Accommodations



Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office for *Request for Accommodations by Persons With Disabilities and Response* (form MC-410). (Civ. Code, § 54.8.)

Clerk's Certificate of Service

I certify that I am not involved in this case and *(check one):*

☐ I handed a copy of this Order to the party and attorney, if any, listed in (1) and (2), at the court, on the date below.

☐ This order was mailed first class, postage paid, to the party and attorney, if any, at the addresses listed in (1) and (2), from *(city):* _____, California, on the date below.

☐ A certificate of mailing is attached.

Date: _____

Clerk, by _____ , Deputy

Name: _____

This is a Court Order.

SUMMONS
(CITACION JUDICIAL)

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

NOTICE TO DEFENDANT:
(AVISO AL DEMANDADO):

HOME DEPOT U.S.A., INC., a Delaware corporation;
and DOES 1 through 20, inclusive

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):

BRENDAN NGWA NFORBI

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (*www.lawhelpcalifornia.org*), the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of $10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.
¡AVISO! *Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.*

Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados locales. AVISO: Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de $10,000 ó más de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.

The name and address of the court is:
(El nombre y dirección de la corte es): Superior Court of California
County of San Joaquin
180 E Weber Avenue, Stockton, CA 95202

CASE NUMBER:
(Número del Caso):

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:
(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):
BRENDAN NGWA NFORBI, 1455 Cat Tail Drive, Stockton, CA 95204 (209) 801-4442 bnn.cdl@gmail.com

DATE: *(Fecha)* Clerk, by *(Secretario)* _____, Deputy *(Adjunto)*

(For proof of service of this summons, use Proof of Service of Summons *(form POS-010).)*
(Para prueba de entrega de esta citatión use el formulario Proof of Service of Summons, *(POS-010)).*

[SEAL]

NOTICE TO THE PERSON SERVED: You are served
1. ☐ as an individual defendant.
2. ☐ as the person sued under the fictitious name of *(specify):*
3. ☐ on behalf of *(specify):*
   under: ☐ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
   ☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
   ☐ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
   ☐ other *(specify):*
4. ☐ by personal delivery on *(date)*:

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI, Plaintiff, v. **HOME DEPOT U.S.A., INC., a Delaware corporation, d/b/a THE HOME DEPOT and THE HOME DEPOT DISTRIBUTION CENTER; and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY AND INJUNCTIVE RELIEF** (1) ICRAA, Civ. Code § 1786.40; (2) CCRAA, Civ. Code § 1785.20.5; (3) UCL, B&P Code § 17200; (4) Penal Code § 290.46(j) *[Unlimited Civil]* *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI ("Plaintiff") alleges as follows:

I.

INTRODUCTION

1. This is an action under Penal Code section 290.46, subdivision (j), for the unauthorized employment use of California Megan's Law registry information. On or about August 2024, Defendant Home Depot U.S.A., Inc. hired Plaintiff to work at its distribution and fulfillment center at 5395 Hopkins Road, Tracy, California 95377. Plaintiff accepted that hire and began onboarding. Home Depot ran a background check concerning Plaintiff. The background report came back with information disclosed pursuant to Penal Code section

290.46 in it, including Plaintiff's listing on the California Sex Offender Registry. Home Depot used that registry information, in whole or in part, to cease communication, ghost Plaintiff, and make an employment decision that ended or prevented his work at the Tracy Center.

2. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for purposes relating to employment, except as another law authorizes. A warehouse or fulfillment-center hiring, continuation, or termination decision is a purpose relating to employment.

3. Those are factual allegations about Home Depot's own report and Home Depot's own decision. He alleges: (a) Home Depot hired him; (b) Home Depot ran a background check; (c) the report that came back contained information disclosed pursuant to Penal Code section 290.46, including his California Sex Offender Registry listing; (d) Home Depot used that information to ghost him and to make an employment decision; and (e) that use was a purpose relating to employment, which section 290.46(j)(2)(E) forbids.

4. Taking those factual allegations as true, as this Court must on demurrer, Plaintiff states a cause of action under Penal Code section 290.46(j) that is plausible on its face. Home Depot obtained a background report containing Megan's Law registry information and used that information to make an employment decision. Subdivision (j)(2)(E) prohibits that use. Code of Civil Procedure section 425.10 requires a statement of the facts constituting the cause of action in ordinary and concise language. Section 452 requires this Court to construe the pleading liberally with a view to substantial justice between the parties. A demurrer admits the material facts properly pleaded. It does not test whether Home Depot will later produce a different report.

5. Plaintiff does not presently possess a copy of the Home Depot background report.

The report, the vendor file, the order time, the access log, and the adjudication notes are in Defendants' possession. He does not attach the report because Home Depot has not given it to him. He nonetheless alleges, as fact, what that report contained and how Home Depot used it. Withholding the report does not make those allegations disappear at the pleading stage. The precise hire date, job title, rate of pay, and vendor name are likewise facts of Home Depot's personnel and screening records. Plaintiff alleges them on information and belief as to August 2024 and the Tracy Center. A demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is not a substitute for records Defendant possesses and has not produced. Plaintiff will seek the report and those records in discovery.

6. Plaintiff does not presently know the legal name of the consumer reporting agency, if any, that Home Depot used. He has sued DOES 1 through 10 for that vendor and for any Home Depot affiliate that was the actual employing or decision-making entity. He does not name The Home Depot, Inc., the publicly traded parent, merely because it owns affiliated entities.

7. This Complaint does not plead a Tameny wrongful-termination count, an IIED count, or a FEHA or Government Code section 12952 Fair Chance Act count. The Fair Chance reservation is not a count. Plaintiff will timely exhaust California Civil Rights Department rights and seek leave to amend if discovery shows conviction history caused or contributed to the decision after the hire. He does not presently plead unpaid-wage, waiting-time, or wage-statement counts. 'Began onboarding' is not, without more, compensable work. He preserves those theories if badge, time, training, or pay records later show he performed employer-controlled activity for which wages were due. The load-bearing claim is the statutory prohibition in Penal Code section 290.46(j). Companion consumer-report and unfair-competition counts are pleaded only to the extent the same employment use, if proven, also violated those statutes. ICRAA and CCRAA are pleaded in the alternative so the notice claim survives whether the report was investigative or an ordinary consumer credit report. Plaintiff does not presently plead Labor Code section 432.7 as a cause of action. He has not

alleged that any report used an arrest that did not result in a conviction, diversion, or a dismissed conviction. He preserves leave to amend if the file later supports those reserved theories.

II.

PARTIES

8. Plaintiff BRENDAN NGWA NFORBI is a natural person residing in Stockton, San Joaquin County, California. He is also identified in employment and court records as Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

9. Plaintiff is required to register under California Penal Code section 290. At all times relevant to this Complaint, information identifying him appeared on California's Megan's Law website and California Sex Offender Registry, operated pursuant to Penal Code section 290.46.

10. Defendant HOME DEPOT U.S.A., INC. ('Home Depot') is a corporation organized under the laws of the State of Delaware, qualified to transact business in California, and doing business as The Home Depot and The Home Depot Distribution Center. On information and belief, Home Depot U.S.A., Inc. owned, operated, staffed, and controlled the distribution and fulfillment center located at 5395 Hopkins Road, Tracy, California 95377 (the 'Tracy Center'), and was the legal employer that hired Plaintiff and made the employment decision challenged here.

11. The Tracy Center is a Home Depot warehouse and fulfillment facility in the International Park of Commerce in Tracy, San Joaquin County. It is a worksite, not a separate legal entity. Plaintiff sues the corporation that operates it.

12. If discovery establishes that another Home Depot subsidiary or affiliate was the

employing or decision-making entity, Plaintiff has sued DOES 11 through 15 for that purpose and will amend to substitute the correct entity.

13. On information and belief, Home Depot's designated agent for service of process in California is CSC Lawyers Incorporating Service, 2710 Gateway Oaks Drive, Suite 150N, Sacramento, California 95833. Plaintiff will serve Home Depot through the agent listed on the California Secretary of State record as of the date of service. Service is not to be made at the Tracy Center merely because that is where Plaintiff worked.

14. The true names and capacities of DOES 1 through 20 are unknown to Plaintiff, who therefore sues them by fictitious names under Code of Civil Procedure section 474. DOES 1 through 10 include the consumer reporting agency, investigative consumer reporting agency, or other vendor that assembled, evaluated, furnished, or scored background information about Plaintiff for Home Depot, and the individuals who ordered, reviewed, or acted on that information. Plaintiff will amend this Complaint when their identities and roles are ascertained.

15. Plaintiff is informed and believes that each DOE Defendant participated in, authorized, directed, furnished information for, implemented, concealed, or ratified one or more acts alleged and is legally responsible for the resulting harm.

III.

JURISDICTION AND VENUE

16. This Court has subject-matter jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10.

17. This action is properly designated unlimited civil under Code of Civil Procedure sections 85 and 88 because the aggregate relief sought exceeds $35,000, exclusive of interest

and costs, including actual, statutory, exemplary, and equitable relief according to proof. No specific personal-injury or punitive-damages amount is pleaded.

18. This Court has personal jurisdiction over Home Depot because Home Depot is qualified to do business in California, operates the Tracy Center in this County, hired Plaintiff for work in this County, and made or implemented the challenged employment decision in California.

19. Venue is proper in the County of San Joaquin under Code of Civil Procedure sections 395 and 395.5 because Plaintiff resides here, the Tracy Center is here, the hire and the employment decision occurred here, and the liability and injury arose here.

20. Plaintiff has not pleaded a federal claim. If a later amendment adds one, that fact will be stated then. This Complaint is a California statutory action belonging in this Court.

IV.

TIMELINESS

21. Penal Code section 290.46 does not prescribe its own limitations period. This action upon a liability created by that statute is timely under Code of Civil Procedure section 338, subdivision (a), which requires that such an action, other than a penalty or forfeiture, be commenced within three years after accrual.

22. The cause of action accrued, if at all, when Home Depot used registry information for purposes relating to Plaintiff's employment — that is, on the date of the employment decision challenged here, not on the date of hire, and not on the date Plaintiff first registered under section 290.

23. Plaintiff is informed and believes that the challenged employment decision — Home Depot's cessation of communication after he accepted the hire and began onboarding — occurred on or after on or about August 2024, and in any event within three years before the filing of this Complaint. The precise day is a fact of Home Depot's personnel and screening records.

24. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340, subdivision (a), supplies the limitations period for the section 290.46(j) count. The actual-damages and discretionary enhancement authorized by section 290.46(j)(4)(A) are a liability created by statute, not an action upon a statute for a penalty. The labeled civil-penalty slice is pleaded in the alternative and is not the sole theory. Those statutes, if raised as affirmative defenses, will be addressed on the nature of the right sued upon. Plaintiff does not plead a Tameny or personal-injury count in this Complaint.

24A. Civil Code section 1786.52 requires that an ICRAA action be brought within two years from the date the plaintiff knew or should have known of the violation. Plaintiff received no Civil Code section 1786.40 advice and no copy of any Home Depot report. He could not discover from a notice he never received that an investigative consumer report had been obtained and used. He knew, on or about August 2024, that communication had stopped. He did not then know that an investigative consumer report had actually been obtained. The precise day communication stopped is a fact of Home Depot's file. The face of this Complaint does not establish a discovery date that bars the ICRAA count. If Defendants interpose section 1786.52, the date is a fact to be proven.

24B. The Unfair Competition Law claim is timely under Business and Professions Code section 17208's four-year period. That period is independent of any shorter period that may apply to a borrowed predicate. The UCL count is not pleaded to resurrect a time-barred statutory right.

V.

COMMON FACTUAL ALLEGATIONS

A. The Tracy Center Hire

25. On information and belief, on or about August 2024, Home Depot hired Plaintiff to work at the Tracy Center, 5395 Hopkins Road, Tracy, California 95377. Plaintiff accepted that position and began onboarding. The precise start date, job title, shift, and rate of pay are facts of Home Depot's personnel file.

26. The hire was for work in San Joaquin County. Plaintiff resided in San Joaquin County and traveled to the Tracy Center for that work.

27. Home Depot required Plaintiff to complete, or caused him to be subjected to, a pre-employment or post-hire background investigation as a condition of the hire, of continued employment, or of assignment at the Tracy Center. That is the background check alleged in paragraphs 1 and 34.

28. Plaintiff does not presently possess a written offer letter, onboarding packet, time records, or wage statements from the Tracy Center hire. Those documents, if they exist, are in Home Depot's possession or the possession of its vendors. Their absence from Plaintiff's files does not negate the hire or the onboarding he began.

B. The Employment Decision

29. After Plaintiff accepted the hire and began onboarding, Home Depot ceased communication and ghosted him. That cessation ended or prevented his work at the Tracy

Center. Ghosting after an accepted hire is an adverse employment action: it denied, withdrew, or ended the employment. A written termination letter is not an element of Civil Code section 1786.40, Civil Code section 1785.20.5, or Penal Code section 290.46(j). Silence after an accepted hire is the decision. Home Depot sent no written termination, no explanation, and no further reporting instruction. The precise day communication stopped is a fact of Home Depot's personnel and screening records.

30. To Plaintiff's knowledge, Home Depot did not tell him that the decision rested on a criminal conviction, a safety incident at the Tracy Center, a failed drug screen, a falsified application, or any other independent, lawful, job-related ground. If Home Depot later asserts such a ground, Plaintiff will test it against the contemporaneous file.

31. On information and belief, Home Depot did not provide Plaintiff, before the decision, a copy of any consumer report used in the decision or a written description of his rights under the Fair Credit Reporting Act. No such package arrived by email, portal, or mail.

32. On information and belief, Home Depot did not, at the time of the decision, advise Plaintiff that an investigative consumer report had been obtained or supply the name and address of the agency that prepared it, as Civil Code section 1786.40 requires when employment is denied under circumstances in which such a report was obtained.

C. The Background Report and Home Depot's Use of It

33. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

34. Home Depot ran a background check concerning Plaintiff in connection with the

Tracy Center hire. The check was a condition of the hire, of continued employment, or of assignment at the Tracy Center.

35. The background report that came back contained information disclosed pursuant to Penal Code section 290.46 concerning Plaintiff, including his listing on the California Sex Offender Registry, a Department of Justice website or Megan's Law website result, or a derivative sex-offender compilation whose source of record was the California registry.

36. Home Depot used that registry information, in whole or in part, to cease communication, ghost Plaintiff, and make the employment decision alleged in paragraph 29. The use was a substantial factor in that decision. The use was a purpose relating to employment.

37. This claim is Home Depot's report and Home Depot's decision. Plaintiff does not presently know the legal name of the consumer reporting agency, if any, that assembled the report. He has sued DOES 1 through 10 for that vendor.

38. Home Depot did not give Plaintiff a copy of the report. It did not tell him that the report contained registry information. It did not identify any independent, lawful, job-related ground for the decision. The report remains in Defendants' possession.

39. Taking the allegations in paragraphs 34 through 36 as true, Plaintiff states a plausible claim under Penal Code section 290.46(j): Home Depot used information disclosed pursuant to that section for a purpose relating to employment, which subdivision (j)(2)(E) prohibits.

40. A demurrer admits those facts. It is not an occasion for Home Depot to substitute a different account of its own unproduced file. If production later shows ordinary court records

and no California-registry source, this count will stand or fall on that record — after production, not before.

41. Alternative explanations — a safety incident, a no-show, a failed drug screen, a lawful criminal-history adjudication under Labor Code section 432.7 or another authorizing statute, or a business slowdown — can be tested against a discrete set of records. Plaintiff will seek the personnel file, time and pay records, background-check order and report, adjudication notes, and communications of the decision-maker.

42. Penal Code section 290.46(j)(3) does not authorize employment use of Megan's Law website information merely because an employer may obtain criminal-history information from another lawful source. A conviction that appears in ordinary court records is not this claim. This claim is the use of information disclosed pursuant to section 290.46. Lerma v. Amazon.com Services, LLC, C.D. Cal. No. 8:22-cv-01727, Dkt. 36, dismissed a Megan's Law count after the employer's report was in the record and showed ordinary court records and a national sex-offender search returning no record. That dismissal turned on the report. This Complaint alleges that Home Depot's report contained registry information and that Home Depot used it. Taking those allegations as true, a court cannot perform a Lerma analysis on the face of this pleading. Defendants may not obtain a pleading-stage dismissal by withholding the report Plaintiff has alleged.

D. Knowledge, Concealment, and Harm

43. Home Depot knew or should have known that employment use of Megan's Law information is prohibited. The registry website displays that warning. Home Depot is a sophisticated employer with dedicated background-check and legal functions. On information and belief, its vendor contracts and adjudication guides address or should address California registry restrictions.

44. On information and belief, Home Depot did not disclose to Plaintiff that registry information had been obtained or used, and thereby deprived him of a meaningful opportunity to inspect the source, dispute a mismatch, and invoke the statutory remedies before the decision became final.

45. The use was not to protect a person at risk within the meaning of section 290.46(j)(1). A general warehouse or fulfillment assignment at the Tracy Center is not, without more, the narrow authorization that subdivision (j)(1) describes. Plaintiff does not allege facts bringing any other statutory authorization into play, and Home Depot has the burden of proving any such authorization as a defense.

46. As a result of the decision, Plaintiff lost the Tracy Center employment, including the opportunity to earn the wages and benefits of that position, according to proof and subject to mitigation. Plaintiff also suffered emotional distress, humiliation, and anxiety from an unexplained employment decision he is informed and believes rested on a status the Legislature has forbidden employers to use. Wages earned or lost, if any, will be proven from Home Depot's records. Plaintiff does not invent a rate or duration here.

47. Plaintiff has sought and continues to seek replacement employment and does not claim a guaranteed lifetime expectancy from an at-will position. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

E. Inspection Rights and Why a Demurrer Cannot Replicate Lerma

48. The section 290.46(j) claim has four elements: (a) information disclosed pursuant to section 290.46; (b) use of that information by a defendant; (c) a purpose relating to

employment; and (d) the use was not to protect a person at risk and was not otherwise authorized by law. Plaintiff alleges each element as fact. The report contained information disclosed pursuant to section 290.46. Home Depot used that information. The use related to the Tracy Center hire and the later employment decision. The use was not, without more, protection of a person at risk. Taking those allegations as true, the claim is plausible.

49. A demurrer tests the pleading, not the unproduced report. Defendants may deny that the report contained registry information. They may not convert that denial into a Lerma dismissal while the report remains in their possession. The First Cause of Action under Civil Code sections 1786.40 and 1786.50 is independent of the section 290.46(j) count. A notice failure can reach discovery even if production later shows a different source of record.

50. If Plaintiff was an employee of Home Depot, Labor Code section 1198.5 entitles him to inspect and receive a copy of the personnel records Home Depot maintained relating to his performance or to any grievance concerning him. Plaintiff has not yet served a section 1198.5 request. He will. Those records, together with the background-check order and report, are the discrete set that will confirm or refute registry use. Their present absence from Plaintiff's files is not a defect in this pleading.

VI.

FIRST CAUSE OF ACTION

California Investigative Consumer Reporting Agencies Act
Civil Code sections 1786.40 and 1786.50 — Against Home Depot and User DOES
(Pleaded on Information and Belief)

62. Plaintiff realleges paragraphs 1 through 50 and 56 through 60 to the extent consistent with this cause.

63. On information and belief, a consumer reporting agency or investigative consumer reporting agency assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes at Home Depot's request. Civil Code section 1786.2 defines an investigative consumer report as one in which information on those subjects is obtained. Plaintiff alleges the product concerned those subjects. He does not invent personal interviews. If this Court concludes that interviews are required and none occurred, this ICRAA count does not apply and the CCRAA count does.

64. Home Depot procured or caused that report to be prepared and was the user of its information.

65. On information and belief, the report was obtained before Home Depot made the employment decision alleged in paragraph 29.

66. Civil Code section 1786.40(a) required Home Depot, under circumstances in which employment was denied or ended and an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the agency's name and address.

67. Home Depot did not comply. Plaintiff was not told a report had been obtained and was not given the agency's name and address.

68. The omission caused incremental harm distinct from the denial itself. Plaintiff could not timely obtain the Home Depot-specific report, test whether its source was the California registry or ordinary court records, or invoke his statutory inspection and dispute rights before the decision became final. Ghosting after an accepted hire is the adverse action. This ICRAA count does not depend on proving Penal Code section 290.46(j). A notice failure under Civil Code section 1786.40 is independently actionable if an investigative consumer report was

obtained and employment was denied or ended without the required advice. If Defendants establish that the product was an ordinary consumer credit report and not investigative, this count does not apply and the CCRAA count does.

69. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, costs, attorney's fees if later represented, and punitive damages upon proof of gross negligence or willfulness.

70. This ICRAA count is not a Fair Credit Reporting Act count. Plaintiff has not pleaded 15 U.S.C. section 1681b(b)(3) in this Complaint. He reserves amendment if production shows Home Depot based the decision in whole or in part on a consumer report and failed to provide a copy of the report and a federal rights summary before the adverse action.

71. Plaintiff also reserves amendment under Civil Code section 1786.16 if production shows Home Depot procured the report before providing the required standalone disclosure and obtaining written authorization. He does not presently allege nonauthorization as an established fact. No Home Depot disclosure form is in Plaintiff's files. On information and belief, Home Depot did not provide a standalone section 1786.16 disclosure clearly stating that an investigative consumer report would include information on character, general reputation, personal characteristics, or mode of living.

VII.

SECOND CAUSE OF ACTION

California Consumer Credit Reporting Agencies Act

Civil Code sections 1785.20.5 and 1785.31 — Against Home Depot and User DOES

(Pleaded in the Alternative to ICRAA)

71A. Plaintiff realleges paragraphs 1 through 50 and 62 through 71 to the extent consistent with this cause.

71B. In the alternative, if the background report was an ordinary consumer credit report rather than an investigative consumer report, the California Consumer Credit Reporting Agencies Act applies. Civil Code section 1785.20.5 required Home Depot, before procuring a consumer credit report for employment purposes, to provide written notice that a report would be used, and, before taking adverse action based in whole or in part on the report, to provide a copy of the report and a notice of rights.

71C. The file contains no copy of any Home Depot consumer credit report and no rights notice before the ghosting. No such package arrived by email, portal, or mail. On information and belief, the decision was based in whole or in part on the background report Home Depot obtained.

71D. If the report was investigative, this count does not apply and the ICRAA count does. If it was an ordinary consumer credit report, the failure to furnish the report and rights notice before adverse action violated section 1785.20.5.

71E. Under Civil Code section 1785.31, Plaintiff seeks actual damages, costs, attorney's fees if later represented, and punitive damages upon proof of willfulness, according to proof.

VIII.

THIRD CAUSE OF ACTION

Unlawful and Unfair Business Practices

Business and Professions Code section 17200 — Against All Defendants

72. Plaintiff realleges paragraphs 1 through 71E to the extent consistent with this equitable cause.

73. Defendants engaged in unlawful practices by violating, to the extent proven, Civil Code section 1786.40, Civil Code section 1785.20.5, and Penal Code section 290.46(j)(2)(E).

74. Defendants engaged in unfair practices because the gravity of the harm — ending a Tracy Center hire on a criterion the Legislature has forbidden, or on a consumer report without the advice the statute required — outweighs any utility of undoing the hire on secret registry-derived information while denying the worker the source, the report, and an opportunity to respond.

75. Plaintiff suffered injury in fact and lost money or property through lost wages from the ended Tracy Center employment, the compelled disclosure of personal identifying information for screening, and other economic losses to be proven. Injury in fact sufficient for UCL standing is not the same as recoverable restitution. Plaintiff does not seek future unearned wages as UCL restitution. He seeks restitution only of money or property in which he had a vested interest and that Defendants acquired through the challenged practices — including, according to proof, the value of personal information he was compelled to disclose and any vested unpaid wages if the personnel file later shows earned work. He does not allege that Home Depot holds a fund of unearned future wages.

76. Legal damages are not an adequate remedy for Defendants' retention, use, and dissemination of registry-derived screening data. On information and belief, Home Depot continues to use the same or similar standardized screening procedures for California applicants, including at the Tracy Center.

77. That continuing practice is the basis for UCL injunctive relief and for declaratory relief under Code of Civil Procedure section 1060. Plaintiff seeks an injunction requiring Defendants to cease prohibited employment use of California registry information at California facilities including the Tracy Center; preserve and disclose the source and audit trail of Plaintiff's screening; and correct or segregate unlawfully used data.

78. Plaintiff also seeks restitution of vested money or property actually acquired, and declaratory relief ancillary to the injunction, to the extent authorized by Business and Professions Code section 17203.

IX.

FOURTH CAUSE OF ACTION

Unauthorized Employment Use of Registry Information

Penal Code section 290.46(j) — Against All Defendants

51. Plaintiff realleges paragraphs 1 through 50, except allegations expressly pleaded in the alternative are incorporated only to the extent consistent with this cause.

52. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk, except as otherwise authorized by law.

53. Section 290.46(j)(2)(E) prohibits use of information disclosed under that section for

purposes relating to employment unless another law authorizes the use.

54. Section 290.46(j)(4)(A) makes the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000). Plaintiff seeks the civil remedies the statute authorizes for unauthorized employment use of information disclosed pursuant to section 290.46, whether this Court locates those remedies in subdivision (j)(4)(A) or in another subdivision of section 290.46. He does not rest this cause on a criminal-enhancement theory.

55. The $25,000 figure in subdivision (j)(4)(A) is a cap on the civil penalty, not a substitute floor that displaces actual damages. Plaintiff seeks the remedies the statute authorizes according to proof.

56. Each element alleged in paragraph 48 is satisfied. Home Depot used information disclosed pursuant to section 290.46 concerning Plaintiff. The user is the employer that takes the information into account in making the employment decision, not a consumer reporting agency that merely retrieves, scores, or republishes it. Plaintiff does not name a vendor as a defendant on this count. This count is directed at Home Depot's use.

57. The use related directly to employment: it concerned the Tracy Center hire or the later decision that ended or prevented Plaintiff's work there.

58. The use was not authorized by section 290.46(j)(1) or by any other provision of law applicable to this warehouse and fulfillment assignment.

59. Defendants knew or should have known that employment use was prohibited, for

the reasons alleged in paragraph 43.

60. Defendants' use was a substantial factor in the employment decision and caused the loss and injury alleged.

61. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A), or by whichever subdivision this Court holds supplies the civil remedy for unauthorized employment use. He does not presently allege a multi-incident pattern or practice at Home Depot sufficient for subdivision (j)(4)(B) preventive relief. He seeks that remedy only if discovery shows reasonable cause to believe such a pattern or practice. The damages claim under subdivision (j)(4)(A) does not depend on pattern or practice. Civil Code section 3294 punitive damages, if any, are pleaded in the alternative to the statute's exemplary damages or civil penalty for the same conduct. Plaintiff will elect. He does not seek double punitive recovery.

61A. On information and belief, Home Depot's human-resources and centralized background-adjudication personnel are managing agents within the meaning of Civil Code section 3294(b): they exercise substantial discretionary authority over hiring and screening policy, not merely the power to hire or fire a single applicant. Those managing agents established, implemented, and ratified the standardized screening practices alleged. Plaintiff seeks section 3294 punitive damages only upon proof of oppression, fraud, or malice and of managing-agent authorization, ratification, or personal participation. ICRAA punitive damages, if any, rest on Civil Code section 1786.50 and do not depend on section 3294.

X.

PRESERVATION OF EVIDENCE

79. Defendants are on notice to preserve Plaintiff's complete Tracy Center personnel and hiring file, including records subject to Labor Code section 1198.5; offer, onboarding,

badge, time, attendance, and pay records; the background-check order, disclosure, authorization, report, component searches, adjudication, access, and cancellation logs; communications of every person who recommended, approved, or implemented the employment decision; vendor contracts and adjudication guides in effect in 2024; and policies governing Megan's Law, FCRA, ICRAA, and fair-chance review.

80. Relevant electronically stored information includes applicant-tracking and HRIS audit fields, event timestamps, reason codes, report-view logs, emails, chats, SMS, and data-retention records from July 1, 2024 through December 31, 2024, and any later date on which the employment decision was recorded or revisited.

81. Home Depot's own background-check file is the document that will confirm the contents Plaintiff has alleged.

XI.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. For actual, consequential, and economic damages according to proof, without double recovery;

2. For the remedies authorized by Penal Code section 290.46(j)(4)(A), including statutory, treble, exemplary, or civil-penalty relief as the trier of fact and law permit;

3. For ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

4. For CCRAA actual damages and punitive damages upon the showing required by Civil Code section 1785.31, if that alternative count is proven;

5. For punitive damages under Civil Code section 3294 against only those Defendants for whom the statutory prerequisites are proven, pleaded in the alternative to any exemplary damages or civil penalty awarded under Penal Code section 290.46 for the same conduct, with no double recovery and no amount pleaded;

6. For restitution under Business and Professions Code section 17203 of vested money or property Defendants acquired, not unearned future wages;

7. For injunctive relief under Business and Professions Code section 17203, and for Penal Code section 290.46(j)(4)(B) preventive relief only if discovery shows reasonable cause to believe a pattern or practice;

8. For declaratory relief under Code of Civil Procedure section 1060 concerning whether Defendants' standardized California screening practices may use information disclosed pursuant to Penal Code section 290.46 for employment;

9. For costs of suit and attorney's fees where authorized if Plaintiff obtains counsel;

10. For prejudgment and post-judgment interest as allowed by law; and

11. For such other relief as the Court deems just and proper.

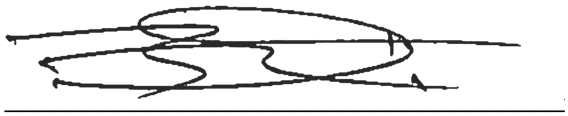
XII.

DEMAND FOR JURY TRIAL

82. Plaintiff demands trial by jury on all causes of action and issues so triable.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

VERIFICATION

I, BRENDAN NGWA NFORBI, declare:

I am the Plaintiff in this action. I have read the foregoing VERIFIED COMPLAINT and know its contents. The matters stated are true of my own knowledge, except those stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Signed on September 8, 2026, at Milpitas, California.



BRENDAN NGWA NFORBI